

23GDCP00200 23GDCP00200

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 23GDCP00200 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: Add-on

Date: August 7, 2026

Case No: 23GDCP00200 Trial Date: n/a

Case Name: Hayrap v. Petroysan, et al.

MOTION TO AMEND JUDGMENT

[CCP § 187]

Moving Party: Judgment Creditor, Kristine Hayrap

Responding Party: Judgment Debtor, Karen Petrosyan [Unopposed]

RELIEF REQUESTED:

Amend the October 6, 2023 Judgment to add Luxury Big Limousine, Inc. as a judgment debtor.

SUMMARY OF FACTS:

On October 6, 2023, the Court entered judgment in favor of Kristine Hayrap ("Judgment Creditor") and against Karen Petrosyan ["Judgment Debtor"] in the amount of \$450,917.12, plus accruing post-judgment interest.

ANALYSIS:

"When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this code." (CCP, § 187.)

"Section 187 grants every court the power and authority to carry its jurisdiction into effect. [Citation.] This includes the authority to amend a judgment to add an alter ego of an original judgment debtor, and thereby make the additional judgment debtor liable on the judgment. [Citation.]" (Highland Springs Conference & Training Center v. City of Banning (2016) 244 Cal.App.4th 267, 280, internal citations omitted.)

"Amending a judgment to add an alter ego of an original judgment debtor 'is an equitable procedure based on the theory that the court is not amending the judgment to add a new defendant but is merely inserting the correct name of the real defendant.' [Citation.]" (Id., internal citations omitted.)

"Section 187 contemplates amending a judgment by noticed motion. [Citations.] The court is not required to hold an evidentiary hearing on a motion to amend a judgment, but may rule on the motion based solely on declarations and other written evidence. [Citation.]" (Id., internal citations omitted.)

"To prevail on the motion, the judgment creditor must show, by a preponderance of the evidence, that: '(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone.' [Citation.] The decision to grant or deny the motion lies within the sound discretion of the trial court [citation] and will not be disturbed on appeal if there is a legal basis for the decision and substantial evidence supports it. [Citation.]" (Id., internal citations omitted.)

"In determining whether there is a sufficient unity of interest and ownership, the court considers many factors, including 'the commingling of funds and assets of the two entities, identical equitable ownership in the two entities, use of the same offices and employees, disregard of corporate formalities, identical directors and officers, and use of one as a mere shell or conduit for the affairs of the other.'" [Citation.] Inadequate capitalization of the original judgment debtor is another factor. [Citation.] No single factor governs; courts must consider all of the circumstances of the case in determining whether it would be equitable to impose alter ego liability. [Citation.]" (Id. at pp. 280-281, internal citations omitted.)

Judgment Creditor asserts that she holds a valid, enforceable judgment against Judgment Debtor in the amount of \$450,917.12, plus accruing post-judgment interest, and that, despite demand, Judgment Debtor has failed and refused to satisfy the judgment.

Judgment Creditor asserts that Judgment Debtor is the 100% owner and sole shareholder of Luxury Big Limo Inc., a California corporation engaged in the limousine and transportation business (the "Corporation"). (Mot., p. 3:7.) She asserts that the Corporation has not been in operation for several years and exists solely to shield Judgment Debtor's assets. (Mot., p. 4:9-10.) The motion argues that Judgment Debtor has commingled his personal funds with corporate funds, paid personal expenses from the corporate account, deposited personal income into the corporate account, and used corporate funds for personal obligations. (Mot., p. 4:14-16; Petroysan Decl., ¶¶ 3-4.) However, aside from her own declaration, Judgment Creditor submits no evidence supporting these assertions.

At the prior hearing on this motion, Judgment Creditor noted that there was a pending family law case concerning these parties. (7/24/2026 Minute Order.) The Court continued the hearing and ordered supplemental briefing due by July 31, 2026, and any opposition by August 5, 2026. (7/24/2026 Minute Order.) No supplemental briefing was filed.

Accordingly, Judgment Creditor has not met her burden to show that imposing alter ego liability is warranted here.

Thus, the motion is DENIED, without prejudice to Judgment Creditor refiling the motion with sufficient evidence that Luxury Big Limo Inc. is the alter ego of Karen Petrosyan.

RULING:

Judgment Creditor Kristine Hayrap's Motion is DENIED, without prejudice.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

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